

IN THE COURT OF COUNTY
(COURT AND COUNTY NAMED IN THE CAPTION - THE COURT IN WHICH THE DEFENDANT
WAS CONVICTED, AND ITS COUNTY (STATE, SUPERIOR, MAGISTRATE, PROBATE OR
MUNICIPAL; YOUR OWN CASE PAPERS NAME BOTH, AND THE INSTRUCTIONS PAGE SAYS
WHO CAN CONFIRM THEM))
STATE OF GEORGIA

STATE OF GEORGIA,

v. CASE NO.:

MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD, OTN: (if known)
Defendant. JUDGE: (assigned by the court)

PETITION TO RESTRICT ACCESS TO CRIMINAL HISTORY RECORD INFORMATION
(VACATED OR REVERSED CONVICTION)
(O.C.G.A. Sec. 35-3-37(j)(2))

The defendant, Maria-Alejandra O'Shaughnessy-Whitfield, files this petition in the above-styled criminal case, in the existing case under the existing case number, under O.C.G.A. Sec. 35-3-37(j)(2). The defendant states:

1. The defendant was convicted of an offense in the above-styled case and sentenced to a punishment other than the death penalty.
2. The conviction was vacated by the trial court or reversed by an appellate or other post-conviction court, and that decision became final by the completion of the appellate process. The order and the record showing finality are attached as Exhibit B.
3. The prosecuting attorney has not retried the case within two years of the date the vacating or reversing order became final.

CASE FACTS THE DEFENDANT SUPPLIES (fill each blank from the court record, never from memory; the instructions page lists where each record lives):

Exact O.C.G.A. Code section of the conviction that was vacated or reversed:
.....

Date of arrest in this case:
.....

Court that vacated or reversed the conviction:
.....

Date the order vacating or reversing the conviction was entered:

.....

Date the decision became final by completion of the appellate process:

.....

Your own statement of how this record has been a barrier since the conviction was set aside (state only what you know first-hand; nothing on these lines is written for you):

.....

.....

.....

READ EACH NUMBERED STATEMENT BEFORE SIGNING. Each is pleaded as your own statement. If any numbered statement is not true of your case, do not file this petition; the instructions page tells you where to get help instead.

WHEREFORE, the defendant asks the Court to enter an order directing the Georgia Crime Information Center (GCIC) and every agency in the county named in the caption, including the arresting agency and the jail or detention center, to restrict all criminal history record information pertaining to the offense, pursuant to O.C.G.A. Sec. 35-3-37(j)(2), with disclosure limited to what O.C.G.A. Sec. 35-3-37(t) and (v) permit; and, in the alternative, that the petition be set for hearing within 90 days of filing.

DATE SIGNATURE OF DEFENDANT

(The defendant signs and dates this petition personally. Nothing on this page is signed or dated for the defendant. No verification and no notary block is required by statute, and none is added.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Notch Crossing Road, Apartment 14B, Savannah, Georgia
31401-2214

TELEPHONE: (912) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Defendant, Pro Se (where unrepresented)

Route: obligation:track-only:GA:ga-vacated-j2

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STATE OF GEORGIA

STATE OF GEORGIA,

v. CASE NO.:

MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD, OTN: (if known)
Defendant. JUDGE: (assigned by the court)

PROPOSED ORDER RESTRICTING ACCESS TO CRIMINAL HISTORY RECORD INFORMATION
(O.C.G.A. Sec. 35-3-37(j)(2))

(This page is proposed by the defendant for the Court's consideration, as the controlling practice directs a
proposed order always accompany the filing. Every order line below is completed, signed and dated only
by the Court.)

Before the Court is the defendant's Petition to Restrict Access to Criminal History Record Information
(Vacated or Reversed Conviction) under O.C.G.A. Sec. 35-3-37(j)(2).

IT IS ORDERED that the Georgia Crime Information Center (GCIC) and every agency in the county
named in the caption, including the arresting agency and the jail or detention center, restrict all criminal
history record information pertaining to the offense, identified by the OTN and the date of arrest stated
below, pursuant to O.C.G.A. Sec. 35-3-37(j)(2).

Disclosure of the restricted information remains limited to what O.C.G.A. Sec. 35-3-37(t) and (v) permit.

OTN of the case (needed for this order to be actionable by GCIC):

.....

Date of arrest identified in this order:

.....

SO ORDERED, this day of, 20.....

.....

JUDGE, COURT NAMED IN THE CAPTION

(The judge's signature block is a third-party block. It is never prefilled, and the court dates its own order.)

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STATE OF GEORGIA,

v. CASE NO.:

MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD, OTN: (if known)
Defendant.

CERTIFICATE OF SERVICE

I, Maria-Alejandra O'Shaughnessy-Whitfield, certify that on the date stated below I served a copy of the
Petition to Restrict Access to Criminal History Record Information (Vacated or Reversed Conviction) and
the accompanying proposed order on each person listed below, by certified mail, e-filing or hand delivery.

NAME AND MAILING ADDRESS OF THE PROSECUTING ATTORNEY SERVED, IDENTIFIED AS
DISTRICT ATTORNEY OR SOLICITOR-GENERAL FOR THE COUNTY (you write it here before
service; the clerk's office can provide it):

.....
.....

OFFICE OF THE CLERK OF COURT SERVED (the clerk of the court named in the caption; the clerk's
office can confirm its service address):

.....
.....

Method used to serve each recipient (chosen from those listed above, as the clerk directs):

.....

DATE OF SERVICE

SIGNATURE OF DEFENDANT

This page is not proof of service and does not say that anything has been served. It is completed and
signed when the copies actually go out. A date or a signature written before the copies go out would be
false.

Route: obligation:track-only:GA:ga-vacated-j2

EXHIBIT A - FINAL DISPOSITION

For: Maria-Alejandra O'Shaughnessy-Whitfield

Filing: the Petition to Restrict Access to Criminal History Record Information (Vacated or Reversed Conviction) in this packet.

ATTACH BEHIND THIS PAGE: a copy of the final disposition of this case.

WHERE YOU GET IT: the clerk of the convicting court.

HOW: Ask the clerk of the convicting court for a copy of the final disposition and attach it behind this page.

The platform never collects, inspects or authenticates this record. You obtain it, you check your answers against it, and you correct the packet where they disagree.

Route: obligation:track-only:GA:ga-vacated-j2

EXHIBIT B - THE VACATING OR REVERSING ORDER, AND PROOF THE DECISION BECAME FINAL

For: Maria-Alejandra O'Shaughnessy-Whitfield

Filing: the Petition to Restrict Access to Criminal History Record Information (Vacated or Reversed Conviction) in this packet.

ATTACH BEHIND THIS PAGE: the order vacating or reversing the conviction, and the record showing the decision became final by completion of the appellate process.

WHERE YOU GET IT: the clerk of the court that vacated or reversed the conviction, and the clerk of the convicting court.

HOW: Ask the clerk of the court that vacated or reversed the conviction for a copy of the order, and the clerk of the convicting court for the docket entries showing the appellate process is complete, and attach both behind this page.

The platform never collects, inspects or authenticates this record. You obtain it, you check your answers against it, and you correct the packet where they disagree.

Route: obligation:track-only:GA:ga-vacated-j2